

Heera Lal Prajapati v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 September 2022 · Writ-C No. 26322 of 2022 · **Speaking order on representation directed; recovery stayed; merits not decided**

HEADNOTE

Where a consumer challenged a provisional assessment notice and a later deposit demand, alleging that his reply was unaddressed and no final assessment had been made, the High Court declined to quash the notices. It directed the Executive Engineer to decide the representation against the provisional notice by a speaking order within a fixed time, stayed coercive recovery of the deposit demand until then, and recorded that if a final assessment is passed the consumer may appeal under clause 6.8(d) of the U.P. Electricity Supply Code, 2005 read with Section 127 of the Electricity Act, 2003. Merits were not examined.

FACTUAL SUMMARY

Heera Lal Prajapati challenged two notices of the Executive Engineer, Electricity Distribution Division-3, Purvanchal Vidyut Vitran Nigam Ltd, Ballia: a 19 February 2021 provisional assessment and a 16 March 2021 demand to deposit a stated sum. He contended that his reply had not been addressed and that no final assessment had been made in accordance with law, so the deposit notice was unjustified. The Division Bench heard the writ without a counter-affidavit.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8(d)

pending representation against provisional assessment; later statutory appeal

HOLDING

A writ to quash a provisional assessment notice and a subsequent deposit demand, where the consumer's representation remains undecided and no final assessment has been made, is disposed by directing the assessing officer to decide that representation by a speaking order, with stay of coercive recovery of the deposit demand until then. If a final assessment is thereafter passed, appeal lies under clause 6.8(d) of the U.P. Electricity Supply Code, 2005 read with Section 127 of the Electricity Act, 2003. The Court expresses no opinion on merits. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Executive Engineer was directed to decide the petitioner's representation against the 19.02.2021 provisional notice by a speaking order within four weeks of a copy of the representation and this order being submitted within two weeks; coercive action on the 16.03.2021 deposit demand stayed until that decision. ¶ 1

alternative-remedy-statutory-appeal-6.8 The Court did not quash the notices on merits; it recorded that if a final assessment is passed the petitioner may appeal under clause 6.8(d) of the Supply Code read with Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND THE 16.03.2021 DEPOSIT DEMAND

The Court expressly declined to express any opinion on the merits. ¶ 2

